

25STCP04606 25STCP04606

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Case Number: 25STCP04606 Hearing Date: June 26, 2026 Dept: 517

The Court is

granting Xingyu Jin's ("Jin") petition under Code of Civil Procedure section 1281.6 for an order compelling arbitration of a dispute between Jin and Respondent Jason J. Emer M.D., a, Professional Corporation ("Emer"), over agreements for

Jin's purchase of cosmetic treatments and products from Emer. The agreements call for arbitration of any disputes arising from the transaction. The agreements do not designate a particular arbitration forum or a particular arbitrator. As requested in Jin's petition, the Court is designating JAMS to be the arbitration forum.

As for a particular JAMS arbitrator, the Court provides here a list of potential arbitrators, all of whom are with JAMS: Linda Burrow; Cynthia Cwik; Cassandra Franklin; Rian James; and David Platt. The Court directs Jin and Emer to meet and confer and select an arbitrator from this list. The Court is setting a status hearing for September 30, 2026 regarding the selection of the arbitrator.

The Court strongly

encourages the parties to continue discussing settlement of their dispute, short of arbitration. The Court's

understanding is that, on April 22, 2026, Emer tendered to Jin \$80,321.06 to resolve the dispute. That strikes the

Court as an eminently fair amount. The

Court does not quite grasp why Emer has refused to accept the tendered amount and is instead insisting on arbitration.

The Court does not discern precisely what Jin hopes to gain in the arbitration.

Also pending before

the Court is Emer's motion pursuant to Code of Civil Procedure sections 572 and 573 for an order allowing deposit with the Court, as custodian, of the amount that he tendered to Jin. (Notice of Motion, p. 1.) The Court is denying the motion.

Section 572 provides as follows:

When it is

admitted by the pleadings, or shown upon the examination of a party to the action, that he or she has in his or her possession, or under his or her control, any money or other thing capable of delivery, which, being the subject of litigation, is held by him or her as trustee for another party, or which belongs or which is due to another party or which should, under the circumstances of the case be held by the court pending final disposition of the action, the court may order the same, upon motion, to be deposited in court or delivered to such party, upon those conditions that may be just, subject to the further direction of the court.

(Code Civ. Proc.,

§ 572.) Under section 573, any money

paid or deposited to the court shall be deposited with the court's treasury. (Id., § 573.)

The language of section 572 does not warrant

the order that Emer seeks. For one, Emer

is not a trustee for Jin. Further, while

Emer argues that the \$80,321.06 he tendered to Jin "constitutes the total sum

at issue in the underlying dispute" (Motion, p. 1), Jin disputes that

proposition. Emer's argument that the deposit

would protect him "by ensuring that it is understood by all parties, the Court,

and any future arbitrator that Emer has already tendered the entire sum

demand by Jin" (Motion, p. 5) essentially asks the Court to affirm preemptively

that the sum tendered was the sum demanded by Jin. That is not the case. There is a possibility that the arbitrator could determine that Emer owes more to Jin.